

1.

CASE #	CASE NAME	HEARING NAME
CVCO2605819	BUERMAN vs BLUE HILL SPECIALTY INSURANCE COMPANY	PETITION FOR SPECIAL PROCEEDING

Tentative Ruling:

GRANT

2.

CASE #	CASE NAME	HEARING NAME
CVRI2205432	TRACY III vs CITY OF HEMET	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON 3RD AMENDED COMPLAINT

Tentative Ruling:

GRANT Defendants' Request for Judicial Notice. SUSTAIN Defendants' Evidentiary Objections. DENY the Motion for Summary Judgment. DENY the Motion for Summary Adjudication as to the first and second causes of action, and for the claim for punitive damages. GRANT the Motion for Summary Adjudication as to the third cause of action.

Assault and Battery (First Cause of Action)

Whether Sergeant Paez's use of force was objectively reasonable requires careful attention to the facts and circumstances of the case, whether the subject posed an immediate threat to the safety of the officers or others, and whether the decedent was actively resisting arrest or attempting flight. Here, without reciting all the facts, Hemet PD Investigators lured decedent out of his motel room by using a confrontational ruse (throwing a bottle through the motel window), and then when he exited the motel room, chased him into the parking lot, where he was shot, never identifying themselves as law enforcement officers. The decedent had a gun which he dropped about 22 feet from where he was shot and killed. Several camera videos captured images of the events that transpired that night. There is testimony about the facts of the case from Sergeant Paez .

Overall, Plaintiffs have arguably established that there are triable issues as to whether the use of deadly force was objectively reasonable under the totality of the circumstances. Any doubt about the propriety of granting the motion is resolved in favor of the party opposing it. (*Marshak v. Ballesteros* (1999) 72 CalApp.4th 1514, 1517.) Moreover, "[Whether a particular use of force was reasonable is rarely determinable as a matter of law." (*Chew v. Gates* (9th Cir. 1994) 27 F.3d 1432, 1443.)

DENY Summary Adjudication.

Negligence (Second Cause of Action)

As stated above, based on the videos and testimony regarding the incident, there are triable issues of fact as to whether the use of deadly force was reasonable under the totality of the circumstances.

DENY Summary Adjudication.

Violation of the Bane Act (Third Cause of Action)

To be actionable, a Bane Act claim requires admissible evidence of the Defendant's specific intent to violate Plaintiff's constitutional rights. Such intent can be proven by evidence of recklessness. (*S.R. Nehad v. Browder* (2019) 29 F.3d 1125, 1142, fn.15.) Here, while the shooting may have been unreasonable under the circumstances, there is no evidence of recklessness. For example, there is no evidence that Paez was involved in the tactical decision to lure decedent out of the motel room using the confrontational ruse detailed above, or that he had anything to do with the decision not to identify themselves as law enforcement officers. Paez's actions appear to be at most negligent, rather than reckless.

GRANT the motion for Summary Adjudication.

Collateral Estoppel

Decedent's Federal Action was dismissed with prejudice on November 25, 2025. (COE, Ex.14.) In *Tukes v. Richard* (2022) 81 Cal.App.5th 1, the Court of Appeal held that while claim preclusion required only a final judgment on the merits, issue preclusion required "actual litigation" of the issue, a requirement that would be meaningless if voluntary dismissal with prejudice was sufficient. (*Id.* at 23.) This reasoning is persuasive. The dismissal of the Federal Action with prejudice does not preclude Plaintiff's claims based on similar issues in the present action.

DENY Summary Adjudication of this issue.

Governmental Immunity

As stated previously, the court has found triable issues as to whether Paez's use of deadly force was reasonable. While Govt. Code § 820.2 grants immunity to public employees for injuries resulting from discretionary acts, Section 820.2 does not provide immunity from liability for a peace officer for the use of unreasonable force in making an arrest. (*Scruggs v. Haynes* (1967) 252 Cal.App.2d 256, 267-268.) Govt. Code § 820.2 is inapplicable here.

DENY Summary Adjudication of this issue.

Punitive Damages

There is evidence that the force used by Paez was unreasonable. There are triable issues as to whether the use of unreasonable deadly force is sufficiently despicable to constitute malice or oppression.

DENY Summary Adjudication of this issue.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502376	MERCER vs FCA US LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

GRANT the motion. Plaintiff is awarded attorneys fees in the reduced reasonable amount of \$15,200 and costs of \$6,900.20 for a total award of \$22,100.20.

Plaintiff counsel's requested hourly rates are excessive for the Riverside geographic area. The court will reduce the hourly rates to \$400/hour for partners and senior counsel, \$300 for associates, and \$150/hour for law clerks/paralegals. Here, the assistant, EO, billed 2.6 hours, but the tasks she performed are administrative in nature. Her allowable hours are reduced to zero (0). Plaintiff counsel AJT's hours expended on the Initial Disclosure template pursuant to CCP § 871.26 (b), (c), and (g), are excessive. The court will strike 7 hours from the total requested hours. AJT's hours are further reduced .9 for excessive time billed on this attorney fee motion, .8 hours for routine administrative functions and clerical communications, and 3.7 hours for duplicative prelitigation work. HM's hours are reduced 4.5 hours for excessive time billed on this attorney fee motion. Total compensable hours after reduction are; 8.9 for HM@\$400/hr., 38.8 for AJT@\$300/hr. and 0 for EO, for a total of \$15,200. No multiplier is awarded as this is a simple, straightforward lemon law case. Costs of \$6,900.20 are also awarded to Plaintiff.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2503497	ROGERS-HARLESS vs GILL	DEMURRER ON CROSS-COMPLAINT

Tentative Ruling:

Continue the hearing on the demurrer to September 30, 2026, at 8:30am, D-4. Plaintiff's opposition is untimely. Defendant will be permitted to file a Reply to Plaintiff's untimely opposition by September 18, 2026.